

		finding that Defendant met its burden in establishing that Plaintiff lacks evidence to support the duty element of his claims. (ROA 128.) Sixth, Plaintiff contends that the deposition of Ryan Wyant was necessary to the Court’s decision. Plaintiff did not request that the Court continue the motion pursuant to Code Civ. Proc., § 437c(h). This is not a reason to grant a motion for a new trial. Seventh, Plaintiff generally argues that there is insufficient evidence to justify the granting of the motion. Plaintiff repeats his arguments and seems to confuse the parties’ burdens. It is not Defendant’s burden to establish that it did not have actual or constructive knowledge of the water; it is Plaintiff’s. (See <i>Ortega v. Kmart Corp.</i>, <i>supra</i>, 26 Cal.4th at 1203.) Finally, Plaintiff’s argument regarding excessive damages (Code Civ. Proc., § 657(5) is nonsensical. It is axiomatic that one may complain of inadequate damages only where damages were found. No damages were awarded in the ruling that Plaintiff contests. Based on the foregoing, Plaintiff’s motion for a new trial is denied. Defendant’s request for judicial notice is granted. Defendant shall give notice.
4.	2026-1552790 Saadian vs. Beach Executive Plaza, LLC	Defendant Beach Executive Plaza, LLC’s (“Defendant”) Motion to Expunge Lis Pendens is granted. Defendant moves, under CCP section 405.22 et seq., for an order expunging the lis pendens filed and recorded by Plaintiffs Jonah Saadian and Brandon Saadian (collectively, “Plaintiffs”) on 3/11/26 in the Official Records of the Orange County Clerk-Recorder (see ROA 11). Defendant contends the lis pendens should be expunged, because Plaintiffs have not effected proper service and cannot meet their burden of showing the probable validity of their real property claim. The Court agrees that Plaintiffs did not comply with the pre-filing requirements of CCP section 405.22, which requires the claimant to, “prior to recordation of the notice, cause a copy of the notice to be mailed, by registered or certified mail, return receipt requested, to all known addresses of the parties <i>to whom the real property claim is adverse</i> and to all owners of record of the real property affected by the real property claim as shown by the latest county assessment roll.” (Code Civ. Proc., § 405.22, emphasis added.) The record reflects that there are five other persons with an interest in the

subject property, who would have an adverse interest to Plaintiffs filing of a lis pendens, and who did not receive a copy of the notice prior to its recording. Although the lis pendens may be “void and invalid” as to these persons (Code Civ. Proc., § 405.23), the record property owner, Defendant, does not deny that it did receive proper notice of the lis pendens. Thus, Defendant has not shown this procedural defect is grounds for granting its motion.

However, the Court agrees with Defendant that Plaintiffs have not shown the probable validity of their real property claim. In their complaint, Plaintiffs allege that Defendant breached a written agreement for the sale of the subject property, because Defendant allegedly cancelled the agreement by imposing a “unilateral ‘drop-dead’ date,” which was not expressly stated in the agreement. However, Plaintiffs acknowledge that the addendum to the agreement provides: “This sale is contingent upon obtaining unanimous written approval from all beneficiaries of the George Saadian Trust and from Louise Saadian. If Matthew Barkohanai, managing member of Beach Executive Plaza, LLC, notifies Buyer that he is unable to obtain unanimous approval, this Agreement shall terminate, and the \$180,000 deposit shall be refunded to Buyer.” (Compl. at ¶ 15.) Plaintiffs allege Barkohanai, on behalf of Defendant, “has made efforts and taken action to thwart the sale to Plaintiffs in bad faith,” including by purportedly failing to provide “additional information regarding the proposed implementation mechanics, tax treatment, and related structure issues before formalizing final written approval” from the beneficiaries. (Compl. at ¶¶ 16, 23.)

The Agreement is a “Standard Offer” form contract, which includes, among other provisions, a provision (in § 15) that, “The Parties shall each, diligently and in good faith, undertake all actions and procedures *reasonably required to place the Escrow in condition for Closing* as and when required by this Agreement. The Parties agree to provide all further information, and to execute and deliver all further documents, reasonably required *by Escrow Holder or the Title Company*” (emphasis added). This provision only requires the parties to provide the documents reasonably required to place the Escrow in condition for closing; it does not require Defendant to provide all documents necessary (e.g., obtaining a favorable tax opinion) to obtain “unanimous approval” from the beneficiaries, so that the contingency in the Addendum can be satisfied.

Moreover, the evidence reflects that Plaintiffs already obtained and distributed a tax opinion to the beneficiaries. However, Plaintiffs were apparently not able to persuade the beneficiaries to rely on this opinion. (ROA 17 [Morris Decl. at ¶¶ 12-15, Exhs. 7-9.]) Nothing in the Agreement requires Defendant to obtain a tax opinion. As

		Defendant points out in its reply, to the extent it agreed to obtain a second tax opinion, this discussion was in connection with a <i>Letter of Intent dated April 6, 2026</i>, which was never signed or accepted, and not in connection with the subject agreement. (Reply at p. 2; see also ROA 17, Exh. 8.) In sum, the evidence reflects that “unanimous written approval from all beneficiaries of the George Saadian Trust and from Louise Saadian” was not obtained. Because Defendant had no duty to obtain the approval, it could not have breached the contract by not obtaining the same. As such, Plaintiffs have not shown they have a probable validity of prevailing on their real property claim. Thus, the Court grants the motion to expunge the lis pendens recorded on 3/11/26, in the Orange County Clerk-Recorder’s office as document no. 2026000072347, regarding the real property commonly known as 12235 Beach Blvd., Stanton, California 90680, and identified by Assessor’s Parcel numbers: 131-373-37; 131-373-38; 131-373-39. In connection with this motion, Defendant Beach Executive Plaza, LLC is awarded a total of \$12,060 in reasonable attorneys’ fees and costs, jointly and severally, against Plaintiffs Jonah Saadian and Brandon Saadian. (Code Civ. Proc., § 405.38.) The Court declines to rule on Defendant’s evidentiary objections (ROA 22), because they are not material to the disposition of the motion. Defendant shall give notice of the ruling.
5.	2026-1583700 Peter Yun as Representative of Emergency Committee to Save Huntington Beach Baptist Church of Huntington Beach vs. Gateway Seminary	Defendants Gateway Seminary’s, Adam Groza’s and Kevin Carrothers’ motion to expunge the lis pendens recorded by Peter Yun against the property located at 8121 Ellis Ave., Huntington Beach, CA 92646 is granted. (ROA 49.) Pursuant to Code Civ. Proc. §405.30, anyone with an interest in real property may move a court for an order expunging a <i>lis pendens</i>. A court “shall” grant a motion to expunge if either of the following conditions exists: (1) The pleading upon which the lis pendens is based does not contain a real property claim (Code Civ. Proc. §405.31); OR (2) The claimant has not established by a preponderance of the evidence the probable validity of the real property claim (Code Civ. Proc. §405.32). The burden of proof rests with the party responsible for filing the lis pendens. (<i>Amalgamated Bank v. Superior Court</i> (2007) 149 Cal.